

(7) All animals taken under this section shall be properly possessed or disposed of at the discretion of the permittee.

History: Am. 6, 2023; Eff. May 11, 2023.

5.60 Ferrets, protection of property.

Sec. 5.60 Under the provisions of section 1 of Act No. 277 of the Public Acts of 1927, as amended, being section 317.151 of the Michigan Compiled Laws, nurserymen and fruit growers may own and use ferrets in the protection of their property against rabbits.

History: Eff. Mar 31, 1989.

5.70 Rehabilitation permit, definitions.

Sec. 5.70 For the purposes of sections 5.71 to 5.75 of this order, the terms in these sections shall have the meaning ascribed to them in this section.

(1) "Bottle babies" means baby wild animals, not including migratory birds, that are being rehabilitated and depend on bottles for food, nutrition, and/or nourishment.

(2) "Continuing education" means classes approved by the department that are required for a wildlife rehabilitation permit renewal every five years.

(3) "Co-mingle" means possessing, housing, transporting, keeping, or otherwise allowing a wild animal to come into direct contact or indirect contact with any other wild animal, domestic animal or bird, livestock, or exotic animal or bird.

(4) "Direct contact" means physical contact between wild animals and domestic animals, including livestock, or physical contact between wild animals and any animals held under the authority of a permit issued by the department to hold game in captivity or a permit issued by the department for scientific collectors.

(5) "Domestic animal" means a species of animal that lives under the husbandry of humans. This includes livestock. This also includes those species of animals used for human food or fiber or those species of animals used for service to humans.

(6) "Donation to" means to give away a wild animal that cannot be released back into the wild to an approved facility as described in 5.74 (1).

(7) "Exotic animal or bird" means a species of animal or bird that is not native to the state of Michigan or the United States.

(8) "Federal permit" means a special purpose permit issued under 50 CFR Part 13 and 50 CFR 21.95 by the United States fish and wildlife service for rehabilitation of migratory birds and federally listed endangered or threatened species.

(9) "Habituated" means being accustomed to the presence or activities of humans, animals, or birds in a way that is inconsistent with the behavior expected of a wild animal of the same species in the wild. Examples include, but are not limited to, wild animals that do not exhibit a flight response or are dependent on humans to provide food for their survival.

(10) "Humane" means the housing, nutrition, hydration, medical care, pain relief, sanitary conditions, stress relief, enrichment, treatment, or individual care that address the needs of the animal in rehabilitation, including euthanasia when release is not possible.

(11) "Imprinted" means to come to recognize another animal, person, or thing as a parent or other trusted being, contrary to the way a wild animal of the same species in the wild would view the other animal, person, or thing.

(12) "Indirect contact" means any sensory (sight, sound, smell, taste, and/or touch) exposure that is more than what the wild animal would experience in its natural environment.

(13) "Migratory birds" are those birds that the United States fish and wildlife service identifies on a list it prepares pursuant to the Migratory Bird Treaty Act that is published in the Federal Register. Migratory birds are also subject to regulation by the department, including under this chapter.

(14) "Overwinter" means possession of a wild animal past December 31st of the year acquired.

(15) "Permit" means the written authorization to conduct wildlife rehabilitation issued by the department under this chapter at an identified facility or facilities.

(16) "Permittee" means an individual who has been issued a permit by the department under this chapter to conduct wildlife rehabilitation at the facility or facilities indicated on the permit.

(17) "Person" shall have the same meaning as defined by section 301 of 1994 PA 451, MCL 324.301.

(18) "Protected animal" means that definition as described in MCL 324.40103(7) as an animal or kind of animal that is designated by the department as an animal that shall not be taken. These include, but are not limited to bats, moose, wolverines, and all birds not defined as game, except house sparrows, feral pigeons, and starlings.

(19) "Members of the public" means any person, except a permittee, subpermittee, licensed veterinarian providing medical care to wild animals at a wildlife rehabilitation facility, employees or representatives of the department or any other governmental agency.

(20) "Public display" means visible to members of the public.

(21) "Rehabilitate" means the care and treatment of injured, sick, oiled, or orphaned wild animals including, but not limited to, capturing, transporting, treating, feeding, housing, and conditioning animals so they can be released back to the wild.

(22) "Rehabilitation" means providing care for injured, sick, or orphaned wild animals as permitted by the department.

(23) "Release" and "release into the wild" means to free a wild animal from confinement to an area where the wild animal is capable of survival. This does not allow for the immediate recapturing of the wild animal, transferring the wild animal to another permittee, or taking the wild animal back into rehabilitation.

(24) "Sanitary" means having adequate food, water, and facilities that are routinely cleaned and disinfected.

(25) "Soft release" means gradually reducing the support provided to a rehabilitated wild animal, such as shelter, food, or water for the specific purpose of improving its chance of survival in the wild. "Soft release" does not include any support or other activity that would violate this order or result in the wild animal becoming habituated.

(26) "Small wild mammals" are defined as follows:

(a) All Michigan mammals classified in the Procyonidae family, which includes northern raccoon (*Procyon lotor*);

(b) All Michigan mammals classified in the Didelphidae family, which includes Virginia opossum (*Didelphis virginiana*);

(c) All Michigan mammals classified in the Leporidae family, which includes eastern cottontail rabbit (*Sylvilagus floridanus*) and snowshoe hare (*Lepus americanus*); and

(d) All Michigan mammals classified in the Sciuridae family, which includes eastern chipmunk (*Tamias striatus*), eastern fox squirrel (*Sciurus niger*), eastern gray squirrel (*Sciurus carolinensis*), least chipmunk (*Tamias minimus*), northern flying squirrel (*Glaucomys sabrinus*), red squirrel (*Tamiasciurus hudsonicus*), southern flying squirrel (*Glaucomys volans*), thirteen-lined ground squirrel (*Spermophilus tridecemlineatus*), and woodchuck (*Marmota monax*).

(27) "Subpermit" means the written authorization issued by the department under this chapter to conduct wildlife rehabilitation under the supervision of a permitted wildlife rehabilitator at an identified facility or facilities.

(28) "Subpermittee" means an adult 18 years of age or older who has been issued a subpermit by the department under this chapter to assist with wildlife rehabilitation under a named permittee's supervision at the facility or facilities listed in the subpermit. Any individual at the facility assisting in the rehabilitation of wild animals must be a permittee or subpermittee.

(29) "Threatened or endangered species" means any wild animal listed as a threatened or endangered species under state or federal law.

(30) "Transport" means the act of a permittee or subpermittee relocating wild animals to the premises of a licensed rehabilitator.

(31) "Wild" means living or growing in the natural environment; not domesticated or not habituated.

(32) "Wild animals" means all wild bird and wild mammal species native to Michigan.

History: Eff. Mar 31, 1989; Am. 11, 2003, Eff. Jun 8, 2003; Am. 14, 2014, Eff. Oct 10, 2014; Am. 1, 2023; Eff. Jan. 1, 2023.

5.71 Rehabilitation permit, general wildlife rehabilitation provisions.

Sec. 5.71 (1) A person shall not possess a live wild animal for the purpose of wildlife rehabilitation without first securing a permit or subpermit from the department, except as provided in subsection 5.71(a).

(a) A licensed veterinarian is not subject to the permitting requirements of section 5.71(1) when the licensed veterinarian is treating a sick, injured, or orphaned wild animal at the veterinarian's facility for not more than 48 hours before releasing it to the wild, transferring it to a permittee, or administering humane euthanasia.

(2) A permittee or subpermittee shall not possess a wild bat, bear, elk, moose, mute swan or skunk. A subpermittee shall not possess a wild deer except when transporting wild fawns.

(3) Only one permittee shall be affiliated with a facility or facilities approved by the department indicated on a wildlife rehabilitation permit. Additional persons affiliated with the facility or facilities need to be subpermittees approved by the department, unless the following exception applies:

(a) The department may approve another person to temporarily care for wild animals at a facility or facilities provided that the permittee provides a written request to the department with the address of the facility, the reason for temporary care, the name of the person caring for the facility or facilities, and the approximate number of days the facility will be in temporary care.

(4) A person may be approved by the department as a subpermittee for the rehabilitation of bottle babies and wild animals except for those species listed in subsection (2), and the transport of wild animals except for those species listed in subsection (2). Subpermittees may transport wild fawns.

(a) An inspection is required for facilities listed on a subpermit for the rehabilitation of wild animals not considered bottle babies. An inspection is not required for subpermittees only transporting wild animals.

(b) If a subpermittee is assisting with wildlife rehabilitation activities at a facility that is not approved by the department, the subpermittee shall own the property where wildlife rehabilitation activities will occur or have a fully executed agreement in which the property owner gives written authorization to the subpermittee to conduct wildlife rehabilitation activities in a designated area of the property for a defined amount of time.

(5) A permittee or subpermittee shall not capture, receive, possess, transport, or transfer wild animals for any purpose other than wildlife rehabilitation. A permittee or subpermittee shall not transfer live or dead wild animals except to other permittees with appropriate facilities or as allowed by sections 5.74 (1) to 5.74 (4).

(6) A permittee or subpermittee shall not sell or barter live or dead wild animals in any manner.

(7) A permittee or subpermittee shall not transfer live wild animals for capture or release without first securing approval from the landowner where capture or release will occur.

(8) Permittees or subpermittees shall not rehabilitate wild animals in a manner contrary to local, state, or federal statutes, regulations, rules, ordinances, or orders, including other provisions of this order not in chapter V.

(9) The permittee or subpermittee shall provide a copy of their permit or subpermit to the department's agents or other law enforcement agents upon request.

(10) The permittee or subpermittee shall obtain a federal permit prior to obtaining or possessing migratory birds unless otherwise provided by the United States fish and wildlife service. When the limitations of a federal permit are more restrictive than the state permit, the federal limitations shall prevail. It is the responsibility of the permittee or subpermittee to know which bird species are considered migratory.

(11) A person may capture and transport a sick, injured, or orphaned wild animal to a permitted wildlife rehabilitator, licensed veterinarian, or department employee, but only after contacting the facility, licensed veterinarian, or department employee to confirm the wild animal will be accepted. Prior to transport, no care may be provided to a wild animal, except as directed by a permitted wildlife rehabilitator, veterinarian, or department employee.

(a) A person has 24 hours Monday through Friday and 48 hours Saturday through Sunday to capture and transport the sick, injured, or orphaned wild animal to a wildlife rehabilitator, licensed veterinarian, or department employee.

(b) This subsection does not apply to the capture and transport of threatened or endangered species and wild bats, bears, cougars, elk, lynx, moose, mute swans, skunks, and wolves, including their offspring. An individual shall not capture and transport a deer unless it's a fawn.

(c) Any persons consistently and repeatedly transporting wild animals directly to another facility must have a permit or subpermit.

History: Eff. Mar 31, 1989; Am. 11, 2003, Eff. Jun 8, 2003; Am. 17, 2008, Eff. Jan 9, 2009; Am. 14, 2014, Eff. Oct 10, 2014; Am. 1, 2023; Eff. Jan. 12, 2023.

5.72 Rehabilitation permit, application, issuance, amendment, renewal.

Sec. 5.72 (1) An application for a permit shall be submitted on a form or through a web-based application system furnished by the department. A permit application shall be considered only if the applicant is at least 18 years of age or older and has provided documentation of all of the following:

(a) Training and experience in the care and handling of such animals, except if the applicant is a licensed veterinarian, shall be documented by 1 of the following:

(i) letter or affidavit, signed by a licensed veterinarian, indicating that the applicant has demonstrated, through at least 30 hours of paid or volunteer experience, adequate skills in handling injured and orphan animals.

(ii) A letter or affidavit, signed by a current permitted wildlife rehabilitator in Michigan, indicating that the applicant has demonstrated, through at least 30 hours of working as an approved subpermittee by the department and has adequate skills in handling injured and orphan animals.

(b) Adequate facilities as determined by the department based upon the national wildlife rehabilitators association and international wildlife rehabilitation council's current "standards for wildlife rehabilitation." All facilities where animals are kept for longer than 48 hours shall be listed on the permit application and shall be subject to inspection prior to permit issuance and at any reasonable time thereafter by an agent of the department.

(c) A permit shall not be renewed, except if the rehabilitator is a licensed veterinarian, unless the application is accompanied by a certificate of completion for a continuing education class in the rehabilitation of wild animals for a class and at a frequency that has been approved by the department.

(d) In addition to the training and experience requirements of subsection (a), a person applying for a permit that is not a renewal, including applying for a new permit after a sanction other than a revocation under 5.250 or five years after the date a permit was revoked as described in 5.72b, shall furnish with their permit application proof of having completed a wildlife rehabilitation basic skills class that has been approved by the department.

(e) If the rehabilitation facility or facilities are on more than one parcel of land, all parcels shall be listed as part of the application process and inspected by the department.

(2) An applicant shall own the property where wildlife rehabilitation activities will occur or must submit a fully executed agreement in which the property owner gives written authorization to the applicant to conduct wildlife rehabilitation activities in a designated area of the property for a defined amount of time.

(3) An applicant shall certify that they have read and understand the statutes, rules, regulations, orders, and ordinances that apply to the wild animals being rehabilitated at the facility or facilities listed on the application and that they agree to comply with all provisions of those legal obligations.

(4) An applicant shall certify that rehabilitation activities and the facility or facilities are in compliance with statutes, rules, regulations, orders, and ordinances.

(5) Following an inspection to a new application or amendment to a current permit or subpermit, the department may deny the application or amendment if it doesn't meet the regulations described in this order.

History: Eff. Mar 31, 1989; Am. 11, 2003, Eff. Jun 8, 2003; Am. 17, 2008, Eff. Jan 9, 2009; Am. 14, 2014, Eff. Oct 10, 2014; Am. 1, 2023; Eff. Jan. 12, 2023.

5.72a Rehabilitation permit, facility standards and inspections.

Sec. 5.72a (1) Following the standards set forth in the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation", all enclosures shall be structurally sound, of sufficient strength for species involved, and maintained in good repair to prevent escape or injury to the wild animals being rehabilitated. The department may approve alternative structures on a case-by-case basis provided they exceed current facility standards set forth in the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation." An appropriate enclosure for any wild animals that can fly shall include four walls, a bottom, and a top that does not permit the wild animal to fly outside of the enclosure. All enclosures shall be adequate to prevent the ingress or egress of animals, wild and domestic.

(2) All premises and facilities covered by a permit shall be open to inspection by an agent of the department or by an agent of the United States fish and wildlife service at any reasonable time. An inspection may include the determination that a wild animal shall be released, be taken into possession by the department or United States fish and wildlife service, transferred to another facility, or humanely euthanized as authorized by the department or United States fish and wildlife service.

History: Eff. Jan. 12, 2023.

5.72c Rehabilitation permit, records, and reporting.

Sec. 5.72c (1) The permittee shall maintain an up-to-date record of all wild animals in their possession, except that federally protected and migratory birds may be recorded upon a form furnished by the United States fish and wildlife service. The record for each wild animal, including those held overwinter, shall list the species, the condition of the wild animal, the name and address of the donor or other source, and the method and date of disposition. In addition, the record for threatened or endangered species, those species of special concern described in section 5.74a, and wild animals held overwinter shall include the county of origin and the county of release. If the permittee or subpermittee has multiple facilities, each facility that keeps animals for 48 hours or longer shall maintain and keep up-to-date records on the premises. The permittee shall submit all state and federal permittee and subpermittee records on a form furnished by the department or on a form furnished by the United States fish and wildlife service for the calendar year to the department's wildlife rehabilitation permit specialist by January 31 of each year or

within 15 days after termination of the permit. A copy of the records required by this section shall be maintained by the permittee for 2 years following the required date of submission.

History: Eff. Jan. 12, 2023.

5.73 Rehabilitation permit, expiration, and disposition of animals and the parts of animals following a violation.

Sec. 5.73 (1) A permit shall be valid for 5 years, and shall expire on March 31 of the fifth year following issuance, unless revoked, annulled, withdrawn, recalled, or canceled prior to that date.

(2) The department may revoke, or otherwise address a violation as described in section 5.250, a permittee's license if the permittee or a subpermittee of that permittee fails to comply with the conditions, limitations, and any other provisions in this order.

(3) If the department revokes or otherwise addresses a violation as described in section 5.250, the department may direct the permittee or subpermittee to dispose of any animal and the parts of any animal in his or her possession in a manner approved by the department.

History: Eff. Mar 31, 1989; Am. 11, 2003, Eff. Jun 8, 2003; Am. 14, 2014, Eff. Oct 10, 2014; Am. 1, 2023; Eff. Jan. 12, 2023.

5.74 Rehabilitation permit, conditions, limitations, care and treatment of wild animals.

Sec. 5.74 In addition to the conditions and limitations already described in Chapter V, the following conditions and limitations shall apply to the possession of wild animals under the authority of a rehabilitation permit:

(1) Except for threatened or endangered species and animals of special concern, all wild animals which cannot be rehabilitated sufficiently to be released into the wild shall be disposed by one of the following ways:

(a) Donation to a public zoological park approved or accredited by the association of zoos and aquariums or a public sanctuary approved or accredited by the American sanctuary association.

(b) Donation to a research or educational institution that meets acceptance criteria for the issuance of a Michigan scientific collector's permit as provided by section 5.21 of this order.

(c) Humane and discreet euthanasia by methods recommended and approved by the American veterinary medical association. Refusal by a permittee or subpermittee to carry out or have another person carryout humane and discreet euthanasia of a non-releasable wild animal is inhumane treatment and is prohibited by this order. The carcasses of protected animals and game animals shall be turned over to the local conservation officer or disposed of as directed by the department, except as described in subsection (4).

(d) A permittee may possess a permanently injured, non-releasable migratory bird for the purpose of fostering orphaned young or juveniles undergoing rehabilitation. The permittee must have both the wildlife rehabilitation permit and scientific collector's permit and be in compliance with the United States fish and wildlife service requirements before possessing the permanently injured, non-releasable migratory bird.

(e) A permittee may possess a permanently injured raptor unable to survive in the wild for the purpose of fostering orphaned young or juveniles undergoing rehabilitation. The permittee must have both the wildlife rehabilitation permit and falconry permit and be in compliance with the United States fish and wildlife service requirements before possessing the permanently injured, non-releasable migratory bird.

(2) All wild animals on the federal endangered or threatened species list shall be turned over to an agent of the United States fish and wildlife service.

(3) All wild animals not included on the federal threatened or endangered species list but included on the state endangered or threatened species list that shall come into possession by a permittee shall be reported during the same business day, or subsequent first business day if acquired on a holiday or weekend, to the department. Such wild animals shall be handled and disposed of only as provided by the department and shall only be possessed for rehabilitation purposes under the authority of an endangered species permit as provided by Part 365 of the natural resources environmental protection act, 1994 PA 451.

(4) All wild animals exhibiting an illness, disease, or other abnormal behavior that shall come into possession of a permittee or subpermittee, and all wild animals that die of illness or disease while in the possession of the permittee or subpermittee, shall be reported during the same business day, or subsequent first business day if the wild animal shall die or be acquired on a holiday or weekend, to the department wildlife disease laboratory as instructed by the department. Such wild animals shall be possessed, handled, and disposed of only as provided by the department. When necessary, the permittee or subpermittee shall initiate all disease-related protocols at their facility as instructed by the department's wildlife disease laboratory experts.

(5) As soon as a wild animal is capable of fending for itself and shows no signs of being habituated, it shall be released into the wild as directed by the permit and this order. Wild animals shall not be released upon the lands of another except with written permission of that property owner or the public land administrator.

(a) Soft release methods using supplemental food is prohibited except for migratory birds on the premise of the facility as described in the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation."

(b) Wild animals shall be released to a location that provides adequate habitat where they will not create a nuisance.

(6) Wild animals of special concern shall be possessed, transported, and disposed of only as provided in this order.

(7) It is the permittee's or subpermittee's obligation to ensure that the facility or facilities is operated and maintained in a manner that does not pose a threat to human or animal safety by following the standards set forth in the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation."

(8) All wild animals shall be kept under humane and sanitary conditions as defined in section 5.70 of this chapter at all times based upon the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation" except as otherwise approved by the department under section 5.72a.

(9) All wild animals shall be cared and treated for as provided by the standards set forth in the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation."

(10) All wild animals being rehabilitated are subject to the following:

(a) Shall be kept separated from high-traffic human living quarters and activities.

(b) Shall be kept in appropriate enclosures at all times and have direct or indirect contact with the permittee or subpermittee only to the extent necessary to provide adequate care and treatment.

(c) Shall not be cared for by anyone other than an approved permittee or subpermittee.

(d) Shall not be housed so as to be visible to, or otherwise allowed to be viewed, by members of the public, unless otherwise authorized by the department.

(e) Shall not have direct or indirect contact with members of the public.

(f) Shall not co-mingle with, have direct or indirect contact with, or be able to see domestic animals, including livestock, or animals held under the authority of a permit issued by the department to hold wildlife in captivity or issued to scientific collectors.

(g) Shall not be tamed, kept as pets, held with domestic animals, or habituated.

(h) Shall be of compatible species, as described in the national wildlife rehabilitators association and international wildlife rehabilitation council's "standards for wildlife rehabilitation", when housed together,

and not pose a threat to health or well-being of other wild animals in the same enclosure. Prey and predator species shall be separated by visual and/or olfactory barriers.

History: Am. 6, 1998, Eff. May 15, 1998; Am. 1, 2001, Eff. Mar 1, 2001; Am. 8, 2002, Eff. Jun 8, 2002; Am. 11, 2003, Eff. Jun 8, 2003; Am. 17, 2008, Eff. Jan 9, 2009; Am. 14, 2014, Eff. Oct 10, 2014; Am. 1, 2023, Eff. Jan. 12, 2023.

5.74a Wild animals of special concern, possession, transportation, and disposal.

Sec. 5.74a Wild animals of special concern are as follows:

(1) Deer of special concern, all wild free-ranging deer. Live wild deer shall not be possessed without a permit from the department, subject to the following:

(a) All wild deer, positively confirmed to be from Alcona, Alpena, Iosco, Montmorency, Oscoda, Otsego, Presque Isle, and Montcalm counties shall not be possessed unless:

(i) euthanized and sent or taken at the earliest possible time to the wildlife disease laboratory by direct arrangement with the wildlife disease laboratory or by arrangement with a local conservation officer.

(ii) obtained by a permittee located inside Alcona, Alpena, Iosco, Montmorency, Oscoda, Otsego, Presque Isle, and Montcalm counties who humanely euthanizes the deer within 24 hours of receipt.

(b) All wild deer, except fawns, positively confirmed to be from inside a county with a confirmed case of CWD, except for Montcalm county, shall not be possessed unless:

(i) euthanized and sent or taken at the earliest possible time to the wildlife disease laboratory by direct arrangement with the wildlife disease laboratory or by arrangement with a local conservation officer.

(ii) obtained by a permittee located in a county with a confirmed case of CWD who humanely euthanizes the deer within 24 hours of receipt.

(c) A licensed permittee located within a county with a confirmed case of CWD, except for Montcalm county, shall only possess a wild fawn from inside that same county if the capture point of the wild fawn is within a 10-mile radius of the licensed permittee's facility. The licensed permittee shall release that same fawn within a 10-mile radius of their facility.

(d) All wild deer, except fawns, positively confirmed to be from outside of a county with a confirmed case of CWD shall not be possessed unless:

(i) euthanized and sent or taken at the earliest possible time to the wildlife disease laboratory by direct arrangement with the wildlife disease laboratory or by arrangement with a local conservation officer.

(ii) obtained by a permittee located outside of a county with a confirmed case of CWD who humanely euthanizes the deer within 24 hours of receipt.

(e) All wild fawns positively confirmed to be from outside of a county with a confirmed case of CWD shall:

(i) not be moved to a county with a confirmed case of CWD.

(ii) be released only in the county of origin. Each cage shall be tagged by the permittee with the county of origin and date of capture for each deer.

(f) If the capture point of a wild deer cannot be positively confirmed to be from a particular county, the deer shall be isolated in a manner to prevent direct, physical contact with other deer and humanely euthanized within 24 hours of receipt. If a deer has come into direct, physical contact with a deer originating from another or unknown county of origin, both deer shall be isolated in a manner to prevent physical contact with other deer and humanely euthanized within 24 hours of receipt.

(g) The permittee shall permanently mark all deer in possession with a clearly visible unique identification mark prior to release as required by the department.

(h) All wild deer, except fawns, cannot be possessed for wildlife rehabilitation.

(i) All wild fawns shall be released by October 1 of the year it was taken into possession for wildlife rehabilitation unless recommended, in a written request, by a Michigan licensed veterinarian and authorized by the department. The written request must be submitted to the department no later than 15 days prior to October 1.

(j) All wild fawns shall not be taken into possession for wildlife rehabilitation October 1 through March 1.

(2) Skunks and bats of special concern, all wild skunks and bats. Live skunks and bats shall not be possessed.

(3) Raccoons of special concern, all wild raccoons. Live raccoons may be possessed and released only as follows:

(a) Raccoons shall be released only in the same county where captured and shall be isolated in a manner to prevent direct, physical contact with wild animals not originating from the same county. Each cage shall be tagged by the permittee with the county of origin and date of capture.

(b) Cages and areas used to hold raccoons for release shall be constructed of materials that can be effectively disinfected.

(c) If the capture point of a raccoon cannot be positively confirmed to be from a particular county, the raccoon shall be isolated from direct, physical contact with other raccoons and humanely euthanized within 24 hours of receipt. If a raccoon has come into direct, physical contact with a raccoon originating from another or unknown county of origin, both raccoons shall be isolated from direct, physical contact with other raccoons and humanely euthanized within 24 hours of exposure.

(4) Elk of special concern, all wild free-ranging elk. Live wild elk shall not be possessed.

(5) Moose of special concern, all wild free-ranging moose. Live wild moose shall not be possessed.

(6) Mute swans of special concern, all wild mute swans. Live wild mute swans shall not be possessed.

(7) Subject to the provisions of this order, in the event a wild deer is humanely euthanized or dies as the result of disease symptoms consistent with chronic wasting disease, the carcass shall be sent or taken at the earliest possible time to the wildlife disease laboratory by direct arrangement with the wildlife disease laboratory or by arrangement with a local conservation officer or a department employee.

History: Am. 11, 2003, Eff. Jun 8, 2003; Am. Interim Order 3, 2008, Eff. Aug 29, 2008; Am. 17, 2008, Eff. Jan 9, 2009; Am. 02, 2011, Eff. Feb 10, 2011; Am. 13, 2012, Eff. Aug 9, 2012; Am. 7, 2016, Eff. May 13, 2016; Am. 4, 2017, Eff. June 9, 2017; Am. 12, 2018, Eff. Aug. 10, 2018; Am. 7, 2019, Eff. July 12, 2019; Am. 1, 2023; Eff. Jan. 12, 2023.

5.75 Rehabilitation permit, kinds of wild animals held under permit.

Sec. 5.75 Permittees or subpermittees shall not possess wild animals other than those indicated on their approved permit or subpermit.

History: Eff. Mar 31, 1989; Am. 11, 2003, Eff. Jun 8, 2003; Am. 1, 2023; Eff. Jan. 12, 2023.

5.76 Disease control permit (DCP), definitions.

Sec. 5.76 For the purposes of sections 5.77 to 5.79 of this order, the terms in this section shall have the meaning described to them in this section. (1) "Permit" means a disease control permit (DCP).

(2) "Permittee" means a person who has been issued a DCP by the department.

(3) "Authorized designee" means a person who has been designated by a permittee to implement the provisions of a DCP. The authorized designee must be eligible under Michigan law to purchase a hunting license. The department reserves the right to deny a person, including the permittee, the authority to personally implement the provisions of a permit if such authority would conflict with a court order, administrative rule, or law.

(4) "Tag" means a DCP kill tag provided by the department.

(5) "Disease" means:

(a) Bovine tuberculosis.

(b) Chronic wasting disease.

(c) Other disease in deer as determined by the director.

History: Am. 6, 1998, Eff. May 15, 1998; Am. 5, 2003, Eff. May 10, 2003; Am. 16, 2007, Eff. Nov 9, 2007; Am. 7, 2016, Eff. May 13, 2016; Am. 4, 2017, Eff. June 9, 2017.

5.77 Disease control permit (DCP); standards, conditions, records; unlawful acts.

Sec. 5.77 (1) A DCP may be issued to any owner of property in a county with a confirmed case of bovine tuberculosis, chronic wasting disease, or lands within a geographic area as determined by the department of a confirmed case of a disease, as defined in section 5.76 of this order.

(2) Property inspections may be conducted under the direction and at the discretion of the authorized department representative.

(3) A DCP shall not be valid except during the time period for which it is authorized, as printed on the tag.

(4) The permittee shall keep records as may be required by the director and present them for inspection at the request of a conservation officer or other department representative.

(5) The permittee or authorized designee shall make a reasonable effort to retrieve all deer shot under the authority of a DCP.

(6) The permittee or authorized designee shall have a valid unused tag on their person when taking or attempting to take deer.

(7) A person killing a deer shall immediately attach the tag to the deer.

(8) All deer killed under a DCP shall be disposed of as instructed. If required, deer heads shall be submitted to the department by the permittee.

(9) The DCP shall be valid within the ownership boundaries of the permittee or as stated on the permit.

(10) A DCP shall be valid for taking deer of either sex as instructed.

(11) For failure to comply with this section or other requirements of the DCP, the department shall deny a permittee to be eligible to participate in the next calendar year.

(12) A permittee or authorized designee shall report their deer harvest as instructed by the department within 72 hours after retrieval of a deer or before transfer of possession of a deer, whichever comes first. All persons reporting their deer harvest must retain the associated harvest confirmation number, if applicable. A person who kills a deer may designate another person to report their deer harvest. "Transfer of possession" means 1 of the following:

(a) The entire deer carcass is transferred to another individual for consumption.

(b) The entire deer carcass, or head, has been accepted by a processor or taxidermist.

(c) The entire deer carcass, or head, has been submitted to the department.

History: Am. 6, 1998, Eff. May 15, 1998; Am. 2, 1999, Eff. Apr 1, 1999; Am. 5, 2003, Eff. May 10, 2003; Am. 16, 2007, Eff. Nov 9, 2007; Am. 18, 2013, Eff. Oct 11, 2013; Am. 7, 2016, Eff. May 13, 2016; Am. 4, 2017, Eff. June 9, 2017; Am. 12, 2018, Eff. Aug. 10, 2018; Am. 7 of 2023, Eff. June 8, 2023.

5.78 Disease control permit (DCP), prohibited acts.

Sec. 5.78 (1) It shall be unlawful for a permittee or an authorized designee to:

(a) Kill more than the number of deer authorized by the DCP.

(b) Possess a deer killed under the authority of a DCP without having a valid tag attached to the deer.

(c) Take or attempt to take a deer within the permit boundaries unless in possession of a valid tag. The

tag shall be presented upon demand to a department representative of the director.

(d) Use a firearm other than a centerfire rifle or shotgun with slugload, or as determined by the department representative.

(e) Possess an uncased or loaded firearm in a vehicle.

(f) Take or attempt to take a deer using an artificial light or from 1/2 hour after sunset to 1/2 hour before sunrise unless approved by the wildlife regional and district law enforcement supervisors.

(g) Take or attempt to take a deer in any area except that location authorized by the department.

(h) Take or attempt to take a deer not authorized by the DCP.

(2) It shall be unlawful for any person other than the permittee or an authorized designee to take or attempt to take deer under the authority of a valid DCP.

History: Am. 6, 1998, Eff. May 15, 1998; Am. 5, 2003, Eff. May 10, 2003; Am. 2, 2005, Eff. Mar 11, 2005; Am. 16, 2007, Eff. Nov 9, 2007; Am. 7, 2016, Eff. May 13, 2016; Am. 4, 2017, Eff. June 9, 2017.

5.79 Repealed. Am 18, 2013, Eff. Oct 10, 2013.

Publisher's note: The repealed section pertained to Disease control permit; revocation, suspension.

5.80 Deer management assistance (DMA) hunting permits; definitions, criteria for issuance, validity of permits, application procedures, restrictions and requirements; exception; unlawful acts.

Sec. 5.80 (1) The terms in this section shall have the meaning described to them in this section.

(a) Permit means a deer management assistance (DMA) permit.

(b) Permittee means an individual who has applied for and been authorized to purchase deer management assistance permits by the department.

(c) Authorized designee means one individual who has been designated by the landowner and approved by the department, to act on behalf of the landowner to apply for and implement the provisions of deer management assistance permits. The department reserves the right to deny an individual, including the permittee, the authority to personally implement the provisions of a permit if such authority would conflict with a court order, administrative rule, or law.

(2) Except as otherwise provided in this section, permits may be issued statewide to owners of land, or their authorized designee, located in areas where current antlerless or antlered harvest methods are insufficient to achieve department deer management objectives or where one or more of the following conditions exist:

(a) The department has documented that the property owner has significant agricultural or horticultural crop damage caused by deer.

(b) The department has documented that a serious disease outbreak is a threat to the deer herd, livestock, or human health.

(c) The department has documented a significant safety hazard caused by deer. (d) Current antlerless regulations are insufficient to achieve landowner deer management objectives.

(3) DMA permits are valid only during an open season for the taking of deer as established by this order and only upon the land for which issued and adjacent private property with permission of the landowner.

(4) Except as otherwise provided in this section, DMA permits are valid only for the taking of an antlerless deer. An individual hunting under the authority of a DMA permit shall carry the unused permit and shall exhibit the unused permit upon the request of a law enforcement officer.

(5) An individual owning land within a qualifying area as determined by the department, or their authorized designee, may apply for a DMA permit with the wildlife supervisor on a form provided by the department.